

25STCV35339 25STCV35339

County: los-angeles

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Case Number: 25STCV35339 Hearing Date: September 17, 2026 Dept: 508

Superior

Court of California

County

of Los Angeles

Department 508

ROBERT M. COHEN, dba THE LAW

OFFICES OF ROBERT M. COHEN,

Plaintiff,

vs.

CARLE EBERT PIEROSE,

Defendant.

Case No.:

25STCV35339

Hearing Date:

September 17, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE]

ORDER RE:

PLAINTIFF ROBERT M. COHEN dba THE LAW OFFICES OF ROBERT M. COHEN'S
MOTION TO COMPEL ARBITRATION

Background

On May 29, 2024, Robert M. Cohen, dba The Law Offices of Robert M. Cohen, ("Cohen") filed a complaint against Defendant Carle Ebert Pierose ("Pierose"), asserting four causes of action for (1) breach of written contract (fee services agreement), (2) account stated, (3) open book account, and (4) common counts.

On April 23, 2026, Pierose filed a motion for leave to file compulsory cross-complaint. On May 4, 2026, Cohen filed an opposition asking the Court to delay any ruling on the motion for leave to file a compulsory cross-complaint until after it ruled on Cohen's petition to compel arbitration pursuant to Code of Civil Procedure section 1281.2 and to stay the lawsuit pursuant to Code of Civil Procedure sections 1281.4. On May 7, 2026, Pierose filed a reply.

On May 11, 2026, Cohen filed the instant petition to compel arbitration. As of September 14, 2026, no opposition or reply has been filed.

On July 27, 2026, Pierose's motion for leave to file compulsory cross-complaint was continued to September 17, 2026, the same date Cohen's petition to compel arbitration was to be heard. Pierose's motion for leave to file compulsory cross-complaint was continued to September 17, 2026 for scheduling purposes only and the merits would not be heard on that date.

Legal Standard

In a motion to compel

arbitration, the moving party must prove by a preponderance of evidence the existence of the arbitration agreement and that the dispute is covered by the agreement. The burden then shifts to the resisting party to prove by a preponderance of evidence a ground for denial (e.g., fraud, unconscionability, etc.). ((Rosenthal v. Great Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 413-414); (Hotels Nevada v. L.A. Pacific Center, Inc. (2006) 144 Cal.App.4th 754, 758.)

Generally, on a petition to

compel arbitration, the court must grant the petition unless it finds either (1) no written agreement to arbitrate exists; (2) the right to compel arbitration has been waived; (3) grounds exist for revocation of the agreement; or (4) litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (Code Civ. Proc., § 1281.2; Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 218-219.)

“California has a strong

public policy in favor of arbitration and any doubts regarding the arbitrability of a dispute are resolved in favor of arbitration.” ((Coast Plaza Doctors Hospital v. Blue Cross of California (2000) 83 Cal.App.4th 677, 686.)

“This strong policy has resulted in the general rule that arbitration should be upheld unless it can be said with assurance that an arbitration clause is not susceptible to an interpretation covering the asserted dispute.” ((Ibid. [internal quotations omitted].) This is in accord with the liberal federal policy favoring arbitration agreements under the Federal Arbitration Act (“FAA”), which governs all agreements to arbitrate in contracts “involving interstate commerce.” (9 U.S.C. section 2, et seq.; (Higgins v. Superior Court (2006) 140 Cal.App.4th 1238, 1247.) Although the parties

disagree on whether the FAA applies to the instant case, regardless, the analysis under California law and the FAA is the same. “Thus, under both the FAA and California law, ‘arbitration agreements are valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.’” (Higgins v. Superior Court, supra, 140 Cal.App.4th at p. 1247, citing Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 98.)

Discussion

Cohen presents an applicable arbitration agreement to his complaint. The Retainer Agreement with Defendant Pierose contains an express binding arbitration provision at paragraphs 9 and 10. (Petition, ¶17, Ex. A, ¶¶9 and 10.) The arbitration provision applies to “each and every controversy between the parties hereto regarding payment of attorney fees owed by you to the Law Offices of Robert M. Cohen. Any claim of non-performance or breach of this agreement, any claim concerning its validity or enforceability, and any claim for malpractice or professional negligence, fraud, misrepresentation, breach of fiduciary duty or refund of fees paid against any lawyer performing services pursuant to the terms hereof, or in connection with the terms hereof, shall be referred to mandatory and binding arbitration.” (Petition, Ex. A, ¶9.) Cohen sent Pierose a Notice of Client’s Right to Fee Arbitration on May 31, 2024. (Id. at ¶8.) Cohen did not file the complaint for payment of fees until December 4, 2025. (Id. at ¶9.)

Plaintiff establishes an applicable arbitration agreement. Plaintiff satisfies its burden as moving party with undisputed, admissible evidence of an applicable arbitration provision in the Retainer Agreement with Defendant. Defendant did not oppose.

Cohen’s Petition to Compel Arbitration is granted.

Cohen also asks that the Court stay this action pending completion of arbitration pursuant to Code of Civil Procedure section 1281.4. “If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (Code Civ. Proc., §1281.4.)

Cohen's entire complaint
is ordered to arbitration. As such, the entire
action is stayed pending completion of arbitration and Pierose's motion for
leave to file cross-complaint is placed off calendar.

Conclusion

Plaintiff Cohen's Petition to Compel Arbitration and Request to Stay
Action Pending Completion of Arbitration is granted pursuant to Code of Civil Procedure sections 1281.2 and 1281.4.
The Court sets an arbitration status conference on September 16, 2027 at 10
a.m. in Dept. 508.

Cohen is ordered to
give notice of this Order.

DATED: September 17, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior Court